



**St. Vrain Valley
Community Watchdog**
neighbors united for clean air

P O Box 82/Hygiene/CO 80533-0082
online at www.stvrainwatchdogs.org

Permit Number	M-1977-208
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Section/Exhibit :	
Class: ☐ Revision	
Type/Seq :	
Class: ☐ Report ☐ Hydro ☒ General	
Doc Type:	Abuse Complaint letter - CKD
☐ Application (Coal only) ☐ Bond ☐ Enforcement ☐ Inspection	

August 8, 2002

Mr. Carl Mount
Senior Environmental Protection Specialist
Division of Minerals and Geology
Department of Natural Resources
1313 Sherman St., Room 215
Denver, Colorado 80203

RECEIVED

AUG 12 2002

Division of Minerals and Geology

Dear Mr. Mount,

On May 14, 2002, the Watchdogs filed a complaint with Mrs. Gabi Hoeffler, Boulder County Health Department, that the sprinkler system at Cemex-Lyons was not functioning, and that plumes of CKD were being dispersed by the wind and blowing off the company's property. (Photo 1)

Mrs. Hoeffler notified us by email on May 20, 2002 that she had followed up with the environmental officer at Cemex-Lyons, and was told that, "they were in process of repositioning and repairing the sprinklers to get them to work more effectively."

July 20, 2002. Another incident of fugitive CKD was observed and reported to the duty officer in the control room at Cemex-Lyons. The officer stated that he didn't know if the sprinkler system was working as the system was on a timer. He also stated that "the sprinkler doesn't cover the edge of the pit and the water truck could not be used as it might fall off the edge of the pit." (Photo 2)

July 26, 2002. Another incident was observed and reported. (All incidents are reported to personnel in the control room at Cemex-Lyons and to Mrs. Hoeffler at the Boulder County Health Department.)

The Watchdogs respectfully request an inquiry into the failure of the sprinkler system at the Cemex-Lyons' CKD disposal site.

The DMG's requirements for the safe and appropriate management of cement kiln dust at Cemex-Lyons are clearly stated: "The CKD is usually pug-milled with water and then either backfilled into a pit or put into waste piles which are constantly sprayed with water to prevent air transport." (Christina Kamnikar 1/20/99) Unfortunately, the recent fugitive dust incidents described above are causing renewed concerns and frustrations within our community.

EPA's modeling studies indicate there are potential human health risks due to exposure to the fine particulate matter which characterizes CKD and that these contaminants may reach food products via movement of stormwater run-off and /or windblown dust from uncontrolled CKD. (1999 Proposed Rule: "Standards for the Management of Cement Kiln Dust") It is frustrating after more than **four years** of citizens and regulatory agencies working in concert to improve housekeeping at Cemex-Lyons, the Watchdogs are once again observing and reporting wind dispersal of fugitive CKD.

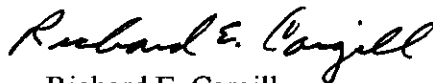
In a newspaper story in the Boulder Weekly, July 25, 2002, Mr. Lohr, plant manager at Cemex-Lyons stated: "We make dust for a living. That's what we do out here. Sometimes it's hard to control, but that's not to say we won't try to do better." Mr. Lohr is most assuredly in the business of making dust, but does the company have the right to mismanage that dust allowing it to blow into our homes, our lungs; possibly affecting our health and safety, our property values, and our quality of life? In another story appearing in the Daily Camera, July 15, 2002, Mr. Lohr said "it took a month to order the parts for the sprinkler system and have them installed."

There appear to be no alarms in the Cemex-Lyons CKD management system. Personnel do not usually discover accidents until we call. Even then, we receive excuses: We are under staffed; people are on vacation; we don't have enough people on the night crew; the video camera is broken; the sprinkler system is broken and on and on. It is unfortunate that the citizens need to watch the Cemex-Lyons CKD disposal site again, but these renewed incidents would go undetected by Cemex-Lyons and the regulatory agencies if we weren't here to perform these tasks. The EPA has proposed a hazardous waste listing and tailored standards for CKD where there are egregious or repeated violations of appropriate management standards.

In light of the company's continuing failure to provide staff and the attention necessary to address the problem of the company's CKD issues, we respectfully request that the DMG designate a more stringent regulatory scheme for this substance—one that will also obviate the need for citizen Watchdogs.

Thank you for your consideration and prompt attention to this matter.

Sincerely,



Richard E. Cargill
Executive Director

St. Vrain Valley Community Watchdogs

enclosures – photos

Memorandum of Understanding and Appendix A

"Commentary and Opinion" by Mike Oakley, Editor, Old Lyons Recorder

cc: Mr. Zayach, Ms. Milmoe, Boulder County Health Department
Ms. Margie Perkins, Mr. David Quimette, Mr. Carl Jorgenson, CDPHE
Boulder County Commissioners
Mr. Richard Long, EPA, Region 8
Representative Mr. Todd Saliman, District 11
Mr. Doug Lempke, Administrator, Air Quality Control Commission
EPA – Washington, D.C., Docket RCRA – 1999-0011
Press



Health Department

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**MEMORANDUM OF UNDERSTANDING
BETWEEN
NORTH BOULDER COUNTY ENVIRONMENTAL HEALTH COMMUNITY TASK FORCE
AND
CEMEX INC.**

WHEREAS, this Agreement is made and entered into this 13th day of August 2001, by and between NORTH BOULDER COUNTY ENVIRONMENTAL HEALTH COMMUNITY TASK FORCE, herein referred to as the Task Force, and CEMEX, INC., formerly Southdown Inc.

WHEREAS, the Boulder County Board of Health supports this community-based, collaborative and non-regulatory approach to improving public health and the environment within this community.

WHEREAS, additional Partners may join at any time, and will be encouraged to do so in accordance with the mission, vision, and goals of the Task Force.

WHEREAS, this Memorandum of Understanding constitutes a non-binding Agreement among the signatory parties to pursue a collaborative working relationship to improve the health, environment, and quality of life of the St. Vrain Valley as described below. This Agreement indicates willingness to investigate and implement such an approach, and to participate in discussions with other parties concerning the possible benefits of a collaborative approach to improving public health and environment within Boulder County.

WHEREAS, this Memorandum of Understanding is not intended and shall not be construed to create the relationship of agent, servant, employee, partnership or joint venture, the relationship between the parties is strictly that of independent entities.

WHEREAS, the St. Vrain Valley is an expansive area in northern Boulder County, located to the east of the foothills and north of Boulder between Lyons and Longmont, which is facing emerging environmental health issues, and the land use in the area includes low-density residential housing, agricultural, and industrial and commercial development.

WHEREAS, there are several environmental health and quality-of-life issues related to CEMEX, INC. which are of concern to the residents of the St. Vrain Valley. The issues range from blowing fugitive dust, stack emissions, noise from industrial operations, diesel emissions from increased truck traffic, facility expansions, concerns with disposal of cement waste dust (CKD) in submerged pits, deposition of particulate pollution on plants of economic value, to the deprivation of enjoyment of private property.

WHEREAS, the Task Force was developed and sanctioned by the Boulder County Board of Health in April 1999 as an organized, select group of individuals which represents interests from the community (37%), special interest groups (27%), industry (27%), and government (9%).

WHEREAS, the Task Force has been funded by Boulder County Health Department and the Colorado Department of Public Health & Environment for fiscal years 1999, 2000, and a portion of 2001.

WHEREAS, the purpose of the Task Force is to convene a group of stakeholders who are able to work collaboratively toward a common goal of improving the health and environment of the St. Vrain Valley through non-regulatory, voluntary strategies that are within the established mission of the Boulder County Health Department Environmental Health Program.

WHEREAS, the Task Force is committed to a collaborative working relationship with CEMEX INC. which has directly improved the quality of life for many residents in the St. Vrain Valley, the purpose of this MOU is to document agreed upon actions (see Appendix A) and to ensure that an agreement remains in place that outlines how the Task Force and CEMEX, INC. will continue to work collaboratively together.

WHEREAS, the Task Force mutually desires that the mission, vision, and goals implemented will represent the shared goals of the Task Force stakeholders and are developed for the benefit of the general public.

WHEREAS, accordingly, the signatories of this MOU agree to support the working agreement between CEMEX, INC. and the Task Force, the workplan of the Task Force, and the common goals and objectives of the Task Force.

WHEREAS, participation in this MOU indicates a willingness to continue to implement a collaborative working relationship among the signatories, and to follow the voluntary actions and guidelines attached as Appendix A until such time as the agreed process is deemed inappropriate, as per this MOU. At such time, the signatory must notify all parties in writing as to the reasons for termination of their participation in the MOU.

WHEREAS, the following list of signatures identifies current TASK FORCE and CEMEX, INC. stakeholders. IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

ATTEST:

BOULDER COUNTY BOARD OF HEALTH

William Marine, MD

Appendix A

Activities implemented and agreed upon by CEMEX, INC. and the North Boulder County Environmental Health Community Task Force

1. ~~Installation and maintenance of the CKD Pit sprinkler system.~~
2. Installation and maintenance of the Dowe Flats sprinkler and watering system.
3. Addition and continued use of a second water truck.
4. Modifications to the current truck wash, including re-routing so every truck must drive through it and installation of a sign which says "air pollution stops here."
5. Distribution of a community newsletter about facility improvements/updates and how to file complaints.
6. Addition of one employee to the payroll for augmenting more frequent plant cleanup/housekeeping efforts.
7. Major re-prioritization of plant expectations, including a formalized plant sweeping schedule, environmental job descriptions for management and employees (Appendix B), and establishment of a complaint procedure to handle community issues (Appendix C).
8. Installation of a closed circuit television monitoring system which allows plant operators 24 hour, real-time monitoring of plant conditions, making it easier to troubleshoot complaints. Installation and maintenance of a PM₁₀ monitor on the east property line boundary.*
9. Provide task force and community members with results of the PM₁₀ sampler when requested or as deemed appropriate.*
10. Rail car shaker will only operate after 6:00 a.m. and no later than 9:00 p.m.
11. Activities causing fugitive-dust emission shall be suspended when winds reach 30 mph for a 15-minute period. This is a faster shutdown time than required by regulation.
12. BCHD to copy task force members on Southdown inspection reports.
13. Investigation of polymer coating enclosures for piles if future circumstances change.**
14. Respond to all complaints with follow-up and immediate action.

* Equipment has been removed. Equipment was installed to run November 1999 through October 2000 in order to document real conditions versus modeled conditions. Results are available and will be provided upon request.

** Polymer coating enclosures are not feasible or cost-effective with current stockpiles.

COMMENTARY & OPINION

CEMEX tire burning plan requires a leap of faith

As we move closer to the intended time frame set by CEMEX to test burn tires as a supplemental fuel in the cement kiln at their Lyons plant, the debate over the wisdom of the proposal is starting to get as hot as a kiln fire (about 1500 degrees Fahrenheit, slightly hotter than the asphalt on the 100 degree day we had on the last day of July).

Both sides, it seems, are growing weary of the debate and tones of personal attack are starting to creep around the fringes of the controversy. The next public meeting on the matter — Tuesday, August 20, at Rogers Hall on High Street here in Lyons — ought to be a barn burner.

The last public meeting on CEMEX's plan was actually two competing meetings held simultaneously at the CEMEX plant out on Ute Highway (by the North Boulder County Environmental Health Community Task Force) and at the Methodist church in Hygiene (by the St. Vrain Valley Watchdogs). Even with the crowd split in two, things are reported to have gotten testy at points.

To the the credit of the company, they have been quite up front about their intention to test burn tires, and anyone who had given it much thought should have seen this proposal coming. Tire-burning in cement kilns is a growing trend.

CEMEX is pretty good at putting a smiley environmental face on its operations, putting out books filled with wildlife photographs and gleaming the sort awards that often go to huge corporations that do a little bit of cleaning up around the margins. But the fact remains that making cement is a dusty and, it seems, environmentally shaky proposition. "We make dust, that's what we do," plant manager John Lohr has been quoted as saying.

Cement kiln dust (CKD) is thought to be a carcinogen. The

From the Editor



Mike Oatley

CEMEX plant on Ute Highway has had a difficult time bringing CKD blowing off its site under control. It took the external pressures of the Community Task Force to get any movement on the issue.

But some people who live near the plant don't think the problem has been adequately addressed yet. They complain that the sprinkler system design to keep CKD wetted down and on the ground breaks down and then is out of service for some time while new parts are ordered. Why, they ask, doesn't CEMEX keep spare parts on hand? It's not as if they don't know the sprinkler system will break down now and then. As Ken Dobbs, of the Environmental Justice Project and owner of a business that, in part, installs sprinkling systems, says all sprinkler systems are prone to breaking down.

The groups vocally opposing CEMEX's plan cite the CKD situation as one reason they don't trust the company to burn tires at the plant.

Certainly the potential for hazardous emissions from tire-burning are possible. Open air tire fires are a serious health hazard. In a typical year, three or four such fires break out across the the country. The opposing groups say that even if CEMEX could run the kiln properly with tires mixed into the fuel at a 10% to 20% ratio, 'upsets' that periodically occur during combustion would send the products of incomplete combustion into the atmosphere, where such compounds can bind to particulates in the air and travel more than 40 miles before settling to earth.

It should not be necessary to impugn CEMEX's trustworthiness in order to say mixing tires into the coal used as fuel in the plant is a bad idea. Used tires are a problem. They accumulate at the rate of one per person per year, for every man, woman and child in the United States.

The thing is, tires do become hazardous waste when they are burned and hazardous waste should be disposed of in hazardous waste incinerators, which are much more tightly regulated — and far more sophisticated — than cement kilns. For example, hazardous waste incinerators are outfitted with secondary combustion chambers, afterburners that further combust the products of initial combustion.

The other thing is, demand for used tires as a raw material in other, non-combustive uses is growing. Tires are stripped of their steel belts and pelletized for use on artificial athletic turfs. Tires are turned into rubber mats. Tires are being used as an additive to asphalt that has produced good results in California.

Tom Abbott, chairman of the Community Task Force, is right when he says that we have an obligation to make the most of the natural resources we extract from the earth.

But we'd also do well to be careful in how we wring additional uses from those resources and, in the case of used tires, true recycling that turns tires into other products fits that bill far better than simply them.

If CEMEX was really concerned with putting substance behind the facade of environmental concern all corporations are effectively required to project, they'd be exploring ways to fire their kilns with natural gas.

The idea that we should err on the side of caution where human health is concerned, put forth by Boulder County resident and CEMEX neighbor Lou Dobbs, seems to be the best guiding principle at work in this controversy. CEMEX's bottom line is not nearly so significant of a concern.



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